

“The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, Defendant has not satisfied the meet and confer requirements of section 430.41. Defendant’s counsel states in her declaration in support of Defendant’s reply brief that counsel was not able to meaningfully meet and confer with Plaintiff’s counsel. The demurrer is continued to allow the parties to meet and confer.

Accordingly, the parties are ordered to engage in meet and confer efforts over their dispute in person, by phone, or by video conference, as required by Code of Civil Procedure section 430.41, subdivision (a).

If the parties are able to resolve their dispute, then Defendant shall promptly take the demurrer off calendar. If the parties are not able to resolve their dispute, then Defendant’s counsel shall file a declaration regarding the meet and confer efforts by September 14, 2026.

25CV-06395 Tomas Gonzalez Jimenez, et al. vs Maria Vasquez Legorreta

Petition for Minor’s Compromise

The petition for approval of the minor’s compromise is GRANTED.

The court will sign the orders lodged with the court on August 14, 2026.

A status conference is set for November 18, 2026, at 8:15 a.m. in Courtroom 8, for confirmation of deposit of the minor’s funds into the blocked account.

If Petitioner files the Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least five (5) court days before the hearing, the status conference will come off calendar.

26CV-00547 Joe Scoto vs. Philip Snowberger

Motion for Attorneys’ Fees

The motion for attorneys’ fees is DENIED WITHOUT PREJUDICE.

The information provided in support of the motion is not sufficient to allow the court to reliably determine the reasonableness of the fees requested.

The request for costs pursuant to the memorandum of costs is GRANTED.

Accordingly, costs are awarded in the amount of \$1,371.20.

Costs are to be paid within thirty (30) days of this court's order.

26CV-02880 Richard Howard vs Merced Community College District, et al.

Demurrer to Plaintiff's Complaint

Continued to September 17, 2026, at 8:15 a.m. in Courtroom 8.

Defendant is to file their reply brief to Plaintiff's late opposition by September 2, 2026.

Motion to Strike Treble Damages from Plaintiff's Complaint

Continued to September 17, 2026, at 8:15 a.m. in Courtroom 8.

Defendant is to file their reply brief to Plaintiff's late opposition by September 2, 2026.

26CV-04250 Christian Cortez vs Rose Belen

Order to Show Cause re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed with the court.

26CV-04296 Guadalupe Barriga vs Fernando Guillen

Order to Show Cause re: Restraining Order

Appearance required. Proof of *untimely* personal service of the notice of hearing and temporary orders on Respondent was filed on August 24, 2026.

26CV-04303 Lenora Peterson vs Robert Barton

Order to Show Cause re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed August 14, 2026.
